SHIELDING CONSUMERS

Accessible, affordable and addictive—junk food consumption is rising. Strong regulations can help curb it

- **To cut costs, companies in India use cheaper ingredients in junk food than those in developed countries, making it even unhealthier. Define HFSS foods clearly and enforce strict nutrient thresholds for salt, sugar and saturated fat**
- **Mandate front-of-pack labels to clearly display sugar, salt and fat content**
- **Restrict HFSS food ads on TV and digital platforms from 6 am to 10 pm, especially targeting children under 18**
- **Tax junk foods heavily to discourage consumption and incentivise healthier alternatives**
- **Keep the food industry out of HFSS policy decisions, similar to the Tobacco Treaty's restrictions on tobacco companies**
- **Ban ultra-processed foods in schools, hospitals and public service areas through government directives**

sugar and fat are displayed in large black octagons on food packages, are required for India, where literacy levels are low and language barriers abound. Thus, warning labels should be in the form of symbols or emojis—just like red and green dots for non-vegetarian and vegetarian food items, respectively.

In India, nutritional information along with an ingredients list is mandatory, but this is useless as consumers can't make sense of technical information, says Dr Gupta of NAPi. During the Supreme Court hearing, Justice J.B. Pardiwala highlighted the lack of transparency on nutritional information on food wrappers: "You all have grandchildren? Let the order on petition come. You will know what Kurkure and Maggi are and how their wrappers should be. The packets have no information."

Studies have shown consumers spend as little as 10 seconds selecting food items; hence, the current labelling system doesn't protect public health interests, Gupta argues. Take the case of Bournvita, which was sold as a 'health drink' for decades despite its high sugar content. Many countries, especially in Latin America, such as Chile, Mexico and Brazil, have adopted FOPNL policies with much success.

A study published in *PLOS Medicine,* which tracked the purchasing habits of 2,000 households, showed that 18 months after Chile implemented the Law of Food Labelling and Advertising in 2016—which included banning ads for unhealthy products between 6 am and 10 pm, bold warning labels on the front of the package and a ban on junk food in schools—consumption of sugar-sweetened drinks dropped nearly 25 per cent. In 2014, the country had raised the tax on sugary beverages to 18 per cent from 13 per cent. As a result, companies reformulated their products to bypass warning labels on packaging. Since then, Peru, Uruguay and Israel have adopted Chilean-style front-of-package labels.

THE POWER OF MARKETING

Consumers face an increasing onslaught of advertising for junk food, positioning it as cool and aspirational. This is done through offering freebies, making emotional appeals, false health claims or endorsements by Bollywood actors, and sports stars market the products ('so finger lickin' good that you can't stop at one' or 'Betcha Can't Eat Just One'). Studies have shown how the 'pester power' of marketing influences choice, preference and purchase decisions.

Himatsingka shares an instance from his visit to a school in Mumbai for the campaign 'Canteen Sudharega India'. A student came up to him and proudly told him that he had stopped drinking cola beverages but had instead moved to Sprite and Limca because "*woh* clear *hai*". He was actually linking Sprite's marketing tagline 'Clear Hai' with its nutrition quotient. Many such examples show miscommunication through advertising, he says. The 2024 NAPi report 'The Junk Push', which analysed 43 advertisements for pre-packaged foods, found that every product was ultra-processed. None of the advertisements provided information on nutrients of concern—sugar, salt and saturated fat. Of these, 25 were marketed using celebrities, 12 featured children and eight made health claims.

Many countries have started to reduce and restrict this kind of marketing. The UK, in December 2024, passed legislation banning junk food ads on television and online between 5.30 am and 9 pm, which will take effect in October 2025. There is no reason why India can't put warning labels like Mexico and Chile or ban junk food advertisements as the UK is doing. The government has been making concerted efforts to promote healthy foods and an active lifestyle by implementing initiatives such as Eat Right India and the Fit India Movement. However, the food regulator FSSAI needs to look at the issue holistically—from the consumption patterns of families to what is entering the market to how it is packaged, labelled, marketed and sold.

Packaged food is here to stay as consumers increasingly opt for convenience due to their busy schedules. But there is no reason why FSSAI cannot tighten norms to safeguard the health of the country's 1.5 billion citizens. ■